

26STCV11168 26STCV11168

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV11168 Hearing Date: July 29, 2026 Dept: 833

Adrienne Grzenda Case No. 26STCV11168

v.

Hearing:

July 29, 2026

Location:

Stanley Mosk Courthouse

Department:

833 Los Angeles County Board of Supervisors Judge: Joseph Lipner

Order Denying Preliminary Injunction

Plaintiff

Adrienne Grzenda, M.D., Ph.D. ("Plaintiff") requests a preliminary injunction ordering Defendant Los Angeles County Board of Supervisors ("Defendant") to (1) reinstate Plaintiff's staff privileges at Los Angeles County Olive View-UCLA Medical Center ("Olive View"); and (2) take no further action to prevent Dr. Grzenda's exercise of their staff privileges unless carried out pursuant to and in compliance with the procedural requirements of the Bylaws of the Professional Staff Association of Olive View.

The

Court DENIES the Application for a Preliminary Injunction.

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (Major v. Miraverde Homeowners Ass'n. (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (CCP § 526(a).)

"The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy." (Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286; see also Yee v. American National Ins. Co. (2015) 235 Cal.App.4th 453, 457-458 ["a preliminary injunction is not a determination on the merits...."].)

DISCUSSION

A.

Summary of Facts

The application is based on Plaintiff's causes of action for writ of mandate and declaratory relief.

Since 2020, Plaintiff has been employed full-time by the LA County Department of Health Services ("DHS") as a Physician Specialist, Non-Megaflex in Psychiatry. (Grzenda Decl., ¶ 6.) Since 2017, Plaintiff has held medical staff privileges at Olive View and since 2022 has most recently been assigned as an attending psychiatrist in the Office of Diversion and Re-Entry Psychiatric Inpatient Unit of Olive View (Unit 6C). (Grzenda Decl., ¶¶ 5-6, 8.)

The Professional Staff Association (“PSA”) Bylaws of Olive View acknowledge the County’s right to terminate a physician’s employment without PSA input or approval – or a hearing under the PSA Bylaws. (Grzenda Decl., Exh. A, PSA Bylaws, Art II, Sec. 1.I.)

Plaintiff’s employment with the County is governed by the Memorandum of Understanding between the County and the Union of American Physicians & Dentists, and the County’s Civil Service Rules. (Grzenda Decl., Exh. M, p. 8.) Neither of these entitles Plaintiff to a medical staff hearing to challenge an employment action taken by the County.

On July 8, 2025, Plaintiff engaged in a confrontation with a patient in Unit 6C at Olive View. (Waterman Decl., ¶ 5.) The patient became agitated, but the situation settled in less than two minutes. (Waterman Decl., ¶ 5.) Camera footage showed no patient behavior or staff reaction indicative of a credible threat. (Waterman Decl., ¶ 5.)

Afterwards, Plaintiff ordered an IM injection of antipsychotics. (Grzenda Decl., ¶ 16.) Involuntary IM administration is appropriate in exceptional circumstances where lesser restrictions are insufficient to address an imminent safety threat. (Waterman Decl., ¶ 6.) Nurses were reluctant to administer the IM shot, fearing the order may have been retaliation for the patient having called Plaintiff a “fat pig.” (Waterman Decl., ¶ 9.) Plaintiff contends the nurses’ observation of the patient’s behavior “has little informative bearing” on their order. (Grzenda Decl., ¶ 17.) Plaintiff believes “[m]y order [for involuntary IM] is effectively a Court order” that must be followed— even if the patient is calm and willing to take oral medication—and a nurse’s failure to do so violates the California Penal Code. (Grzenda Decl., ¶¶ 17, 19.)

Later that afternoon, Plaintiff contacted the Los Angeles County Sheriff’s Department, reporting that the patient had made a criminal threat to “shoot” Plaintiff. (Waterman Decl., ¶ 7.) Plaintiff asked that the patient be arrested. (Waterman Decl., ¶ 7.) During their conversation with the Deputy, Plaintiff said, at various times, that the patient had stabbed a nurse, that they had attempted to stab a nurse, and that they had thrown a pen. (Waterman Decl., ¶ 7.) The Sheriff’s Deputy concluded that no elements of a criminal threat existed, declined to make an arrest, and declined to prepare a report of the incident. (Waterman Decl., ¶ 7.)

Risk management personnel conducted a preliminary review of the matter, interviewing around ten witnesses who observed the incident, including the Sheriff's Deputy who responded to Plaintiff's request for arrest. (Waterman Decl., ¶ 9.) Multiple staff members reported that the patient had been rude and argumentative with Plaintiff, but then calmed down and was cooperative. (Waterman Decl., ¶ 9.) Staff members expressed discomfort with administering an IM shot because it did not seem warranted given the patient's calm state. (Waterman Decl., ¶ 9.) Staff expressed concern that Plaintiff's order may have been retaliatory, tied to the patient having called them a "fat pig." (Waterman Decl., ¶ 9.)

On July 22, 2025, Dr. Waterman placed Plaintiff on Ordered Absence pending the outcome of a full investigation. (Waterman Decl., ¶ 10.) The decision to place Plaintiff on Ordered Absence was based on the need to protect the safety of patients and staff on Unit 6C from imminent danger, and to preserve the integrity of the ongoing administrative investigation into a serious matter. (Waterman Decl., ¶ 10.) Dr. Waterman noted that there had been a multi-year pattern of escalating disruptive conduct on Plaintiff's part. (Waterman Decl., ¶ 10.)

After Plaintiff requested a hearing to challenge the summary suspension, they received notice on September 4, 2025, that reports were filed on September 3, 2025, with the Medical Board of California pursuant to Business and Professions Code section 805, subdivision (e), and the National Practitioner Data Bank, reporting that they had been summarily suspended. (Grzenda Decl., ¶¶ 44-46.) One week later, Plaintiff received a letter from the Medical Board, indicating that it had "opened an investigation of the complaint above regarding the Medical Board of California Health Facility/Peer Review Reporting Form." (Grzenda Decl., ¶ 49.)

After being placed on administrative leave, Plaintiff then asked DHS to provide a hearing under the PSA Bylaws to challenge the Ordered Absence. (Grzenda Decl., Exh. G at pp. 1-5.) The Performance Management Unit clarified the separate processes, explaining to Plaintiff that Performance Management Unit investigations "are separate of the PSA and not governed by their bylaws." (Ibid.)

After a union representative and the Performance Management Unit confirmed that Ordered Absence is not governed by the PSA Bylaws, Plaintiff then turned to the PSA. Plaintiff asked the PSA to lift the Ordered Absence

immediately. (Grzenda Decl., Exh. O, pp. 3-15.) The PSA responded—accurately—that no action or recommendation had been taken against Plaintiff’s clinical privileges and that they were not entitled to a hearing under the PSA Bylaws. (Id., Exh. R, pp. 1-2.)

Plaintiff requested that their medical privileges be reinstated. (Grzenda Decl., ¶ 78.) Dr. Waterman did not respond. (Grzenda Decl., ¶ 78.)

Plaintiff claims that they have been unable to exercise clinical privileges, perform duties associated with their faculty appointment, supervise residents, conduct research, or participate fully in professional activities. (Grzenda Decl., ¶ 92.) Plaintiff explains that advancement as a physician-scientist is governed by fixed grant cycles, publication timelines, promotion reviews, and leadership opportunities and these opportunities occur once per year and require uninterrupted academic engagement. (Grzenda Decl., ¶ 93.) Delays measured in months can produce professional consequences lasting for years. (Grzenda Decl., ¶ 93.)

Plaintiff also claims that information that should have remained confidential was disclosed, and contributed to feelings of isolation, loss of trust, and continued concern regarding retaliation. (Grzenda Decl., ¶ 96.) Plaintiff has had to devote substantial time and resources to protecting their medical license and professional standing, which has created stress. (Grzenda Decl., ¶ 98.)

B.
Procedural
Issues

“The general rule of motion practice...is that new evidence is not permitted with reply papers.” (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537; see also Alliant Ins. Services, Inc. v. Gaddy (2008) 159 Cal.App.4th 1292, 1308 [in a preliminary injunction proceeding, “the trial court has discretion whether to accept new evidence with the reply papers”].) Plaintiff filed four new declarations with the reply brief, and the Court declines to consider these declarations, with the exception of the portions of Plaintiff’s supplemental declaration responding directly to Dr. Waterman’s declaration.

C.

Plaintiffs'

Likelihood of Success on the Merits

The application is based on Plaintiff's causes of action for writ of mandate and declaratory relief.

A

cause of action for declaratory relief requires a plaintiff to show (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. (*Childhelp, Inc. v. City of Los Angeles* (2023) 91 Cal.App.5th 224, 235.)

There are two essential requirements to the issuance of an ordinary writ of mandate under Code of Civil Procedure section 1085: (1) a clear, present, and ministerial duty on the part of the respondent, and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (*California Ass'n for Health Services at Home v. Department of Health Services* (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where ... the claim is that an agency has failed to act as required by law." (*Id.* at 705.)

"Generally, mandamus is available to compel a public agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) "While, of course, it is the general rule that mandamus will not lie to control the discretion of a court or officer, meaning by that that it will not lie to force the exercise of discretion in a particular manner ... [it] will lie to correct abuses of discretion, and will lie to force a particular action by the inferior tribunal or officer, when the law clearly establishes the petitioner's right to such action." (*Flores v. Dept. of Corrections & Rehabilitation* (2014) 224 Cal.App.4th 199, 208.)

An agency is presumed to have regularly performed its official duties. (*Evid. Code* § 664.) Petitioner "bears the burden of proof in a mandate proceeding brought under Code of Civil Procedure section 1085." (*California Correctional Peace Officers Assn. v. State Personnel Bd.* (1995) 10 Cal.4th 1133, 1154.)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.’ Interpretation of a statute or regulation is a question of law subject to independent review.” (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.)

Plaintiff argues they are likely to prevail on the merits because the PSA—the Professional Staff Association of Olive View--never imposed or ratified any summary suspension. (See Bus. & Prof. Code § 809.5, subd. (a).) The only other group able to summarily suspend Plaintiff is the governing body of an acute care hospital, but this suspension can only last two days, unless ratified by the peer review body. (See Bus. & Prof. Code § 809.5, subd. (b).) Plaintiff argues that their current suspension was imposed by persons who are not designees of the Governing Body of Olive View and even if they were designees of the Governing Body of Olive View, the suspension automatically terminated after two working days since the peer review body never ratified any suspension. Therefore, Plaintiff alleges they have a ministerial duty to be reinstated.

However, Plaintiff’s briefing ignores a key underlying fact: the County and PSA have separate and independent authority and processes, and Plaintiff has affiliations with both. Those are two separate relationships, controlled by two separate authorities, governed by two separate procedures.

Numerous provisions in California’s peer review statute confirm that clinical privileges and employment as distinct aspects of a physician’s practice, governed by different entities. (See, e.g., Bus. & Prof. Code, § 805, sub. (e) [requiring reports for suspensions of “privileges, membership, or employment”] [emphasis added]; § 805, subd. (a)(1)(B)(i) & (iv) [creating separate classifications for hospital “medical or professional staff” and committees organized by entities “employing” physicians]; § 805, subd. (a)(4) [definition of “staff privileges” does not include employment].) As Defendant states, the PSA can terminate a physician’s clinical privileges without having to afford the physician civil service procedure. The County can terminate an employee without triggering a hearing under PSA bylaws.

In this case, the County acted on one side of that dual status—employment—by placing Plaintiff on Ordered Absence or paid administrative leave. (See Grzenda Decl., Exh. F [explaining that ordered absence is equivalent to administrative leave with pay].) Plaintiff’s employment status was governed by civil service rules – not the rules of the

PSA bylaws. (See Grzenda Decl., Exh. G [explaining that Plaintiff's status on ordered absence is governed by Civil Service Rules 16.01[1]].) Thus, the PSA bylaws do not govern what must happen to Plaintiff after being placed on "Ordered Leave."

Plaintiff insists that they were actually put on summary suspension, not ordered absence. This is despite the exhibits attached to Plaintiff's own declaration. (See Grzenda Decl., ¶ 31 [union representative explaining that the action was temporary and non-disciplinary]; Grzenda Decl., Exh. F [notice from Risk Management Division of Health Services of Los Angeles County explaining Plaintiff is on Ordered Absence or administrative leave with pay]; Exh. G [email from Risk Management Division that Plaintiff is not suspended and explaining that paid admin leave is not a disciplinary action]; Exh. H [official letter from Risk Management Division that an 805 Report was submitted and Plaintiff remains on Ordered Absence or administrative leave with pay]; Exh. R [letter from PSA explaining that the Association has taken no action that bars Plaintiff from exercising her clinical privileges and Plaintiff is involved in a separate proceeding separate from the Association about the July 8, 2025 incident]; Exh. V [letter from PSA President explaining that they would not do anything while there was an active employment investigation].)

One of Plaintiff's main arguments that they were on summary suspension is that they received a Section 805 report filed against them. Section 805, subd. (e) of the Business & Professions Code provides that, "An 805 report shall also be filed within 15 days following the imposition of summary suspension of staff privileges, membership, or employment, if the summary suspension remains in effect for a period in excess of 14 days."

The 805 report proclaims, "Dr Grzenda was placed on an Ordered Absence (administrative leave with pay) effective July 18, 2025. This is a temporary assignment pending the outcome of an administrative investigation." (Grzenda Decl., Exh. H, p. 5.) At the very bottom, Defendant's expert, Dr. Waterman, checked "imposition of summary suspension on employment." Dr. Waterman explained that he checked "imposition of summary suspension on employment" on the 805 report because that fit the description of the situation the best. (Waterman Decl., ¶ 11.)

However, Defendant made clear that an 805 report was necessary because even though "the ordered absence is not a disciplinary action, it requires reporting because it is based on a medical disciplinary cause or reason, as defined in Business & Professions Code section 805, subdivision (a)(6), and

will be in place for a period in excess of 14 days.” (Grzenda Decl., Exh. H, p. 2.) The 805 report states that an employment action (and not clinical privileges) were taken by the employer. (Grzenda Decl., Exh. H, p. 4 [classifying action as suspension of employment by committee organized by an entity employing more than 25 licentiates that functions for the purpose of reviewing the quality of professional care provided by employees].)

Thus, the 805 report does not confirm that Plaintiff is experiencing a summary suspension. At the very best for Plaintiff, it creates a disputed issue of fact. When put in the context of the other exhibits discussed above, all indications point to Plaintiff being on ordered absence, not summary suspension.

The filing of an 805 Report also does not require a hearing under the PSA Bylaws. The 805 report means the County must afford Plaintiff due process, but that is not synonymous with a medical staff hearing under the PSA Bylaws or a statutory peer review hearing. (Bus. & Prof. Code, § 809.7 [exempting county hospitals from statutory peer review hearing procedure].) For non-disciplinary employment actions—like Plaintiff’s Ordered Absence—the civil service rules supply the proper due process requirements. (Shoemaker v. County of Los Angeles (1995) 37 Cal.App.4th 618, 630.)

Simply put, paid leave from employment is not synonymous with a summary suspension of clinical privileges. Therefore, Plaintiff is unlikely to succeed on the merits.

D.

Balance
of Harms

For the second factor, the court must consider “the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) “Irreparable harm” generally means that the defendant’s act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award.

(See Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.) The showing of harm is even more demanding

when a Plaintiff seeks injunctive relief against a public entity because “[t]here is a general rule against enjoining public officers or agencies from performing their duties.” (Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd. (1994) 23 Cal.App.4th 1459, 1471.)

Plaintiff has not identified significant irreparable harm from a denial of an injunction. Instead, Plaintiff relies on generalized assertions of professional and reputational harm from not being able to work. (See, e.g., Grzenda Decl., ¶¶ 92-93.) The Court notes that Plaintiff is still being paid. The Court declines to make a finding of irreparable injury based on generalized assertions.

On the flip side, the Court does find that the County has a substantial interest in maintaining temporary workplace restrictions while it completes its review of allegations involving patient care and professional conduct. (Waterman Decl., ¶ 12.) The County has an interest in patient and staff safety, and must also prioritize the integrity of the investigation. (Waterman Decl., ¶ 12.)

Moreover, Plaintiff’s opening brief fails to even discuss one of the reasons they are on Ordered Leave – possibly false allegations made to law enforcement. (Grzenda Decl., Exh. H, p. 1.)

On July 8, 2025, Plaintiff reported a criminal threat to the Los Angeles County Sheriff’s Department on July 8, 2025. (Grzenda Decl., Exh. H.) After reporting the threat, a Sheriff’s Deputy showed up and determined that the patient was cooperative, non-aggressive, and calm. (Waterman Decl., ¶ 7.) Plaintiff’s story was inconsistent and changing, and included allegations that (1) the patient had stabbed a nurse; (2) that the patient had attempted to stab a nurse; and (3) that the patient had thrown a pen. (Waterman Decl., ¶ 7.) A later inpatient progress note stated that the patient had said, “I’m going to shoot you in the f**ing head.” (Waterman Decl., ¶ 8.) Plaintiff’s reports could not be corroborated. (Grzenda Decl, Exh. H.)

These allegations need to be investigated. Without further investigation, Plaintiff would be allowed to return to work even though they have been accused of making false behavioral allegations and for allegations that were frequently changing and inconsistent. (Grzenda Decl., Exh. H, p. 1.) Moreover, Plaintiff’s comparison of a nurse’s reluctance to administering a retaliatory shot to a violation of the penal code has the potential to create tension in

the patient care environment if Plaintiff were to return.

The best way for the Court to prioritize the integrity of the investigation is to maintain the status quo – Plaintiff's paid leave pending investigation. Any other relief would essentially give Plaintiff the relief they have sought before the Court has adjudicated whether Plaintiff has any right to that relief.

CONCLUSION

The
Court DENIES the application for a preliminary injunction.

IT IS SO ORDERED.

Dated: July 29,
2026

Joseph
Lipner

Superior
Court Judge

[1] Plaintiff's reply discusses Rule 18.01, a rule that never appears in any of Plaintiff's evidence or in Defendant's opposition. Plaintiff states that Civil Service Rule 16.01 (which is noted in the declarations) governs leaves of absence on employee requests but cites to no legal authority. Civil Service Rule 16.01 states:

Leaves of absence from regular duties, with pay, may be granted only by the appointing power under such conditions and for such periods as established by the board of supervisors, when such leaves are determined to be in the best interests of the service.

There is nothing in the text of Civil Service Rule 16.01 which would indicate it governs leaves of absence only on employee requests. Civil Service Rule 16.01 has been stated as the official reason why Plaintiff is on leave.

